

Department of the Interior
Bureau of Safety and Environmental Enforcement
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
(JOFOC for Acquisitions > SAT)
(Optional for Acqs. ≤ SAT)

I recommend that the **BUREAU OF** use other than full and open competition for the acquisition of the following supplies or services. If this acquisition is to be made with only one source or a limited number of sources, negotiations will be conducted with the indicated proposed supplier(s).

1. Nature/Description of the Acquisition [FAR 6.303-2(b)(2)]

2. Description of Supplies or Services [FAR 6.303-2(b)(3)]

3. Requisition No.

5. Name of Proposed Source(s)

4. Cost Estimate (including options)[FAR 6-303-2(b)(3)]

6. REQUESTING OFFICE CERTIFICATION

I certify that this recommendation contains the information required by FAR 6.303-2 and its contents are accurate.

Requesting Office Rep. (Name & Title)

Signature:

Phone No:

Date:

7. PROCUREMENT OFFICE CERTIFICATION

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Contracting Officer (Name)

Signature:

Phone No:

Date:

Identify one statutory authority for this acquisition to be conducted under "other than full and open competition" procedures [FAR 6.303-2(b)(4)]. Provide narrative justification associated with the respective stated authority in block number 15.

THE COMPETITION IN CONTRACTING ACT OF 1984 (P.L.98-369)

8. ☐ **41 USC 3304(a)(1) – Only one responsible source**

This authority shall be used in preference to the Public Interest justification. It shall not be used when any of the other circumstances are applicable. (Explain what makes this contractor the only responsible source: i.e., does this proposed contractor have facilities or equipment that is specialized and vital to the effort? Is the proposed contractor the only one that can meet critical schedules? Does the proposed contractor have prior experience of a highly specialized nature vital to the effort? Why won't any other product or service satisfy the need? Is the acquisition the result of an unsolicited research proposal [see FAR 6.302-1(a)(2)(i)]? Describe market survey and analysis efforts leading to this conclusion.)

9. ☐ **41 USC 3304(a)(2) – Unusual and compelling urgency**

This authority applies in those situations where (1) an unusual and compelling urgency precludes full an open competition and (2) delay in award of contract would result in serious injury, financial or other, to the Government. (Explain why the agency's need for the supplies or services is of such an unusual and compelling urgency that the Government would be seriously injured unless it limited the number of sources. Solicitation from as many potential sources as is practicable under the circumstances is required.)

10. ☐ **41 USC 3304(a)(3) – Industrial mobilization; engineering, developmental, or research capability; or expert services**

This authority applies when it is necessary to award the contract to a particular source or sources in order (1) to establish or maintain an essential capacity for theoretical analyses, exploratory studies, or experiments in any field of science or technology, or (2) to establish or maintain an essential engineering, research, or development capability to be provided by an educational or other nonprofit institution or a federally funded research and development center, or (3) to acquire the services of an expert for any current or anticipated litigation or dispute. (Does the proposed contractor have facilities and equipment that are vital in the event of a national emergency? Is the proposed contract to maintain properly balanced sources of supply for meeting the requirements of acquisition of programs in the interest of industrial mobilization? Is the proposed contract to create or maintain the required domestic capability for production of critical supplies by limiting competition to items manufactured in the United States or Canada?)

11. ☐ **41 USC 3304(a)(4) – International agreement**

This authority may be used when the acquisition is to be reimbursed by a foreign country that requires the product to be obtained from a particular firm as specified in official written direction such as a Letter of Offer and Acceptance; or, when services are to be performed, or supplies are to be used in the sovereign territory of another country and the terms of a treaty or agreement specify or limit the sources to be solicited. (Cite the international agreement or treaty between the United States and the foreign government or international organization that precludes full and open competition. Provide the written directions of the foreign government reimbursing the agency for the cost of the acquisition, which precludes full and open competition.)

12. ☐ **41 USC 3304(a)(5) – Authorized or required by statute**

This authority may be used when a statute expressly authorizes that the acquisition be made through another agency or from a specified source. (Cite the authority that expressly authorizes that the acquisition be made through another agency or from a specified source, and attach a copy of the statute.) Note: While this statutory exception includes the small disadvantaged business 8(a) set-aside program, a JOFOP is not required for this type of procurement.

13. ☐ **41 USC 3304(a)(6) – National Security**

This authority may be used for any acquisition when disclosure of the Government's needs would compromise national security. It will not be used merely because the acquisition is classified, or merely because access to classified matter will be necessary to submit a proposal or to perform the contract. (Explain why the disclosure of the Government's needs would compromise the national security or violate security requirements.)

14. ☐ **41 USC 3304(a)(7) – Public Interest**

This authority may be used when none of the other authorities above apply. Individual justification, Secretarial approval, and Congressional notification 30 days before award of contract are required.

15. JUSTIFICATION (Attach additional pages if needed)

(a) Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited **[FAR 6.303-2(b)(5)]**. [Prepared by Program Office]

(b) Describe the efforts taken to ensure offers were solicited from as many potential sources as is practicable, including whether a Government-wide point of entry (GPE) notice was or will be published as required by FAR 5.2 and, if not, which exception under FAR 5.202 applies. **[FAR 6.303-2(b)(6)]**. [Prepared by Program Office]

(c) Demonstration that the anticipated cost to the Government will be fair and reasonable **[FAR 6.303-2(b)(7)]**.
[Prepared by Contracting Officer]

15. JUSTIFICATION CONTINUED (Attach additional pages if needed)

(d) Describe the market research that was conducted and the results of that survey. If actions were taken by procurement personnel to satisfy this requirement such as a GPE sources sought synopsis, please specify. **[FAR 6.303-2(b)(8)]**. [Initiated by the Program Office and finalized in collaboration with the Contracting Officer]

(e) Describe any other documentation to support the JOFOC. **[FAR 6.303-2(b)(9)]**. [Prepared by Program Office]

(f) List sources, if any, that expressed, in writing, an interest in the acquisition. **[FAR 6.303-2(b)(10)]**.
[Prepared by Program Office]

(g) List the actions the Bureau will take to promote competition on any subsequent acquisitions for similar supplies or services. **[FAR 6.303-2(b)(11)]**. [Prepared by Contracting Officer]

APPROVALS (FAR 6.304)

Over SAT	16. Chief of the Contracting Office (Name & Title)	☐ APPROVE ☐ DISAPPROVE	(Signature)	(Phone No.)
				(Date)
Over \$750,000	17. Competition Advocate (Name & Title)	☐ APPROVE ☐ DISAPPROVE	(Signature)	(Phone No.)
				(Date)
Over \$15 million	18. Head of the Contracting Activity (Name & Title)	☐ APPROVE ☐ DISAPPROVE	(Signature)	(Phone No.)
				(Date)
Over \$75 million	19. Departmental Senior Procurement Executive (Name & Title)	☐ APPROVE ☐ DISAPPROVE	(Signature)	(Phone No.)
				(Date)

INSTRUCTIONS FOR COMPLETING FORM

Block No.	
1	Describe the nature of the contractual action for which approval is requested (i.e., new contract, modification). Include type of contract (i.e., FFP, CPFF, etc.)(discuss with CO); type and year of funding; and estimated share and ceiling arrangements, when applicable.
2	• Briefly describe product/service to be acquired; • Explain requirement in layman's terms so it can be understood by a reviewer not familiar with the requiring activity; • Identify the requiring activity; • Include option quantities and performance periods; and • If the action described is a modification, distinguish between the work covered by the basic contract and the proposed modification.
4	Include all applicable option and system life-cycle costs.
5	Include more than one source as a proposed contractor, unless you are citing 41 USC 3304(a)(1). For example, if the procurement is based on unusual and compelling urgency, you must still contact as many potential sources as is practicable unless the justification for urgency contains detailed documentation to show that it is not practicable under the circumstances to solicit additional sources (see FAR 6.302-2(c)(2)).
6 & 7	Obtain certification from the requesting office and contracting officer prior to submitting for approval.
8-14	Check the box next to the justifying statutory authority. Only one statutory authority can be cited. The justification on pages 3 to 5 must be clear and concise as to how the cited authority is related to the acquisition. For Information Technology acquisitions of specific make and model items, the statutory authority generally will be 41 USC 3304(a)(1), only one responsible source.
15(a)	• Discuss the unique requirements of the product/service that necessitates a noncompetitive action. What are the minimum requirements of the product/service? For IT acquisitions, what are the unique specifications that only one source can meet? • Describe how the required delivery/performance date impacted the decision to restrict competition; • Identify the proposed sole source contractor, if applicable, and discuss its unique capabilities, experience, expertise, etc. that makes it the only one capable of performance; • When competition would have been feasible had more time been available, discuss factors such as cost/time to conduct a competitive procurement, time available versus time required, phase-in/phase-out time, and complexity of requirement; • When the requirement was "directed or mandated" at a higher level, identify who imposed the requirement and how the mandate was communicated. Provide a copy of applicable documentation. • Identify the constraints such as schedule requirements, unique features and mandatory requirements, or the existence of patent, proprietary data, copyright or other such limitations which restrict competition. • If the requirement is for an interim contract or contract extension with the incumbent, discuss why it would be neither cost effective nor realistic to expect another contractor to perform during the brief interim period. Some relevant items may be: start up costs; manning problems including recruitment and associated relocation fees; transfer and accountability of a large amount of GFP; variety and complexity of requirements; preparation of management plans. • Describe the detrimental effects to the mission of the requiring activity or to the government that would result if the JOFOC was not approved and product/service not acquired. A general statement of mission failure is not sufficient.

INSTRUCTIONS FOR COMPLETING FORM

Block No.	
15(b)	Describe efforts made to ensure that offers are solicited from as many potential sources as is practicable. Also describe the extent of effective competition anticipated for this acquisition.
15(c)	Describe action taken to ensure that the CO will determine a fair and reasonable price (e.g., obtain audit/field reports, perform cost and/or price analysis, perform cost realism, prepare independent government estimate, etc.)
15(d)	Describe the extent of the market research (FAR 10.002) conducted to identify all qualified sources and the results thereof. Researching the marketplace may range from written or telephone contacts with knowledgeable federal and non-federal experts regarding similar or duplicate requirements, and the results of any market test recently undertaken, to the more formal sources-sought announcement in pertinent publications (e.g., technical/scientific journals, or the FedBizOpps), or solicitations for information or planning purposes.
15(e)	Any other facts supporting the use of other than full and open competition, such as: • Explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available; • When FAR 6.302-1(a)(2)(ii) is cited for a follow-on acquisition, include an estimate of the cost to the Government that would be duplicated and how the estimate was derived; and • When FAR 6.302-2 is cited, include data, estimated cost, or other rationale as to the extent and nature of the harm to the Government.
15(f)	Include a listing of the sources that expressed written interest in the acquisition. If applicable, clearly state "To date, no other sources have expressed an interest in writing." [Also state that the notices required by FAR 5.201 shall be/have been published and any proposals received shall be considered. If a notice will not be published in the government-wide point of entry, state which exception in FAR 5.202 applies.(coordinate with CO)]
15(g)	Describe action taken to ensure that future buys will be competed. Action taken to enhance competition might include challenging restrictive data markings, developing plans to acquire unlimited data rights, the development of a second source, develop segments of the requirement that can be competed, etc. If competition is planned, provide the estimated dates of the first competitive action. Provide an explanation if no competition is planned. When future competition is not anticipated because this JOFOC covers all known requirements, so state.
16-19	If any person required to sign-in these blocks does not approve, the procurement shall not proceed any further and the JOFOC shall be returned to the requisitioner through the CO. All signatures required on the form (as applicable to the particular acquisition) must appear in order for the procurement to proceed.